

25STCV31501 25STCV31501

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C07%2F16%2F2026

Source SHA-256: 60cd0bfe9f0e269175274d491f2c08ccb63b5bd2754a12b42ebf397031662cd8

Case Number: 25STCV31501 Hearing Date: July 16, 2026 Dept: 512

HEARING DATE: Thurs., July 16, 2026

JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Stuckey

v. Love COMP. FILED: 10-29-25

CASE NUMBER: 25STCV31501

NOTICE: NO

PROCEEDINGS: DEMURRER

TO THE COMPLAINT

MOVING PARTY: Defendant

Zina Love

RESP. PARTY: None

DEMURRER

(CCP §§ 430.10, et seq.)

TENTATIVE RULING:

Defendant Zina Love's

unopposed Demurrer to Plaintiff's Complaint is CONTINUED to August 20, 2026 at 9:00

a.m. in Department 512 of the Stanley Mosk Courthouse. Case Management

Conference is continued to August 20, 2026 at 9:00 a.m.

At least 16 court days prior to the

next scheduled hearing, Defendant is to file supplemental papers

addressing the deficiencies noted herein.

Moving party is ordered to

give notice.

SERVICE:

☐ Proof of Service Timely Filed (CRC,

rule 3.1300) NO

☐ Correct Address (CCP §§ 1013, 1013a) NO

☐ 16/21 Court Days Lapsed (CCP §§ 12c,

1005(b)) NO

OPPOSITION: None

filed as of July 12, 2026 ☐ Late ☐ None

REPLY: None

filed as of July 12, 2026 ☐

Late ☐ None

ANALYSIS:

I.

Background

On October 29, 2025, Plaintiff Ivory

Stuckey ("Plaintiff"), proceeding pro se, filed the instant action against

Defendant Zina Love ("Defendant") and Does 1-100, alleging causes of action for

Breach of Contract, Fraudulent Inducement to Contract, Unjust Enrichment,

Conversion, Breach of Fiduciary Duty, Accounting, Declaratory Relief, and

Injunctive Relief. (Compl., p. 1.)

On April 3, 2026, the Court took off

calendar Defendant's first Demurrer to the Complaint as Defendant repeatedly

failed to serve the Demurrer on Plaintiff. (4/3/26 Order.)

On April 7, 2026, Defendant filed and

served the instant second Demurrer to Plaintiff's Complaint (the "Demurrer").

No Opposition has been filed.

II.

Procedural

Issues

As an initial matter, the Court notes

that service of the Demurrer is defective. Defendant filed and served

the Demurrer by electronic service only. Self-represented litigants cannot be

served electronically unless they consent to receive electronic service. (Cal.

Rules of Court, rule 2.251; Code Civ. Proc., § 1010.6, subd. (c).) Here,

Plaintiff is self-represented, and there is nothing in the record indicating

Plaintiff manifested consent to receive electronic service. Additionally, the

Court's record does not reflect an opposition to the Demurrer has been filed.

The

Court may not rule on the Demurrer absent proper service and notice of hearing.

Further,

the Court notes that defense counsel failed to meet and confer with Plaintiff prior

to the instant Demurrer, and Defendant merely sent two emails to Plaintiff and made

one telephone call to Plaintiff as attempts to meet and confer. (Demurrer,

Lonas Decl., Exhs. A-B.) This is insufficient under the Code of Civil Procedure

to satisfy the meet and confer requirement for a demurrer.

Thus,

the Demurrer is CONTINUED to allow Defendant an opportunity to file supplemental

papers addressing the deficiencies noted herein.

IV.

Conclusion

& Order

For the foregoing reasons,

Defendant Zina Love's unopposed Demurrer to Plaintiff's Complaint is CONTINUED

to August 20, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk

Courthouse. Case Management Conference is continued to August 20, 2026 at 9:00

a.m.

At least 16 court days prior to the

next scheduled hearing, Defendant is to file supplemental papers

addressing the deficiencies noted herein.

Moving party is ordered to

give notice.